THE LETTERS OF THE RAMBAM

Even Hillel Would Have Been Angry

The Rambam's Letter to Rav Pinehas HaDayan, Part 1

Source: Igrot HaRambam: the letter to **Rav Pinchas ben Meshullam HaDayan** of Alexandria (Hebrew original, Shilat edition), opening section

Shiur: Given by Dayan Daniel Kada on Zoom, Tuesday 18 March 2025 (second part of the evening, after finishing the Letter on Martyrdom)

These notes are based on the Sofer.ai transcript of the recording.

Where We Are in the Series

#	Letter	Theme
1	**To Ovadia the Convert** (three letters)	Inspiration and halachic standing of a convert
2	**To the rabbis of France** (Montpellier)	Astrology
3	**To Ibn Jabbar** of Baghdad	Questions raised against the Rambam; encouragement to study Torah
4	**Ma'amar Kiddush Hashem**	Martyrdom, finished tonight
5	**To Rav Pinchas HaDayan**	Begun tonight

Plan: this letter takes us to Pesach: tonight, next week, and a final session in a couple of weeks. After Pesach, a new set of letters.

Introduction: Who Was Rav Pinchas HaDayan?

- **Pinchas son of Meshullam**, originally from **Provence**. At some point he migrated to **Egypt**, where he became a **dayan in Alexandria**.
- The letter suggests the Rambam was **involved in his appointment** and had some **overarching influence** over him.
- **A go-between to French Jewry.** Recall the end of the **letter on astrology**: the Rambam said he answered tersely, and only because **someone sent an emissary who wouldn't leave until he wrote** to the rabbis of Montpellier. That someone was **Pinchas**.
- **Dates:** we don't know when he came to Egypt, but by **1191** he was a dayan in Alexandria, and by **1202** he had died. The letter reads as written **early in his tenure**. **Rav Shilat** concludes it was written between **1185 and 1194**, in the last fifteen years of the twelfth century. The Rambam died in **1204**, so this is **the peak of his career**, towards the end of his life.

A strained relationship

The Rambam had an excellent relationship with the **rabbis of Montpellier**, and with **another dayan in Egypt** who had also come from abroad (generally identified as **Rabbi Anatoli**). With Pinchas, the relationship was **"strained, to put it lightly."** "We're going to see some **internal rabbinic politics**, but also how the Rambam responded."

What kind of letter

- Written in **Hebrew**, because Pinchas, from France, **didn't read Arabic**.
- **Very personal.** "We get to see the Rambam's *middot*. We also get to see his **harshness**, and the Rambam can be harsh. He didn't suffer fools." He **stands his ground** very strongly when he wants to.
- He **recognises his accomplishments**: "not arrogance," but in a few places he does say that **what he has done, no one did before him**.
- Contents: advice on **personal relationships** and on **public leadership**, but above all **a clear insight into why the Rambam wrote the Mishneh Torah**. "That is the essence of this letter."
- **Less famous** than the letters on martyrdom or to Yemen; not on Sefaria. The only copy the Rabbi found was **Shilat's edition on Bar-Ilan**, shared on screen.

Part 1: "I Was Ill, Not Ignoring You"

The Rambam opens with honorifics: *the great and holy Pinchas, may God protect him, the great judge, the tower, the wonderful sage.*

Pinchas had written repeatedly: **why have you stopped answering me? What have people told you I said about you?**

The only reason I haven't answered your many letters is that **I've been ill**, not because of things I've heard you said about me.

Don't believe what's passed along

I know that anything passed from one person to another gets changed and added to, all the more when people have a tendency to speak badly and spread things.

So:

- **You** may have heard I stopped answering because of what you said. **Don't accept it.**

- **I** don't accept what I've heard about you, because I know how stories grow.

- And **even if I heard it with my own ears**, or knew it a hundred percent: **people embarrass me, reject me, curse me, and I don't care. I forgive.**

"Should I uproot what I planted?"

Pinchas had begged: *please don't throw me away, keep in touch, I feel you're ignoring me.*

God forbid that I should uproot what I planted and smash what I built.

"This is why it seems the Rambam had some hand in bringing him to Egypt: *you're a product of mine. I'm not going to leave you.*" I wouldn't do that to an ordinary student, let alone a sage like you.

Part 2: Forgiving Is Not the Same as Not Minding

"You can **forgive** someone and **not hold a grudge**, and still be **upset about how they behaved**."

So the Rambam goes on: *if people curse and insult me, I move on. But I was angry at what you did, and I want to tell you so.***

How Pinchas found out

The **other dayan** (probably Rabbi Anatoli) had told Pinchas that the Rambam was **very angry** about one of his letters. The Rambam **doesn't deny it**.

"What the Rambam **doesn't** address is why that dayan went and **told** Pinchas what the Rambam had said about him. **That I find troubling.** Maybe there was a constructive purpose (*to'elet*); we don't know the circumstances. But it's something to point out."

Part 3: The Dispute: Washing Before Prayer

The Rambam now **quotes Pinchas's earlier letter verbatim** ("your exact letter, letter by letter"). Pinchas was in **Alexandria**, the Rambam in **Cairo**.

Pinchas had written: **the people rose against me** and said *we no longer accept you; you permit what should be forbidden. Our tradition from those before us is that one who has had a seminal emission (*ba'al keri*) may not study Torah or pray until he washes, and you let people pray and learn without washing.*

The halachic background

Stage	What applied
The Torah	A *ba'al keri* must **immerse** before entering the **Temple**. **Nothing** about Torah study or prayer
Ezra's enactment	A *ba'al keri* may not **study Torah** until he immerses; later courts extended it to **prayer**
Abolished	The public **couldn't sustain it**, so the decree **lapsed**. The Rambam understands it lapsed **for everything**, study **and** prayer
Later custom	In **Arab lands**, a widespread **custom** (*minhag*) not to pray until one **washes the whole body** in water. **Not a mikveh**, just washing

The Rambam codifies this in the **Mishneh Torah** (Hilchot Tefillah, ch. 4), read in class:

All the ritually impure need only **wash their hands**; even if able to immerse, **immersion is not required for prayer**. Ezra decreed that a *ba'al keri* may not study Torah until he immerses… **This decree was not accepted by the majority of the community, who could not observe it, so it was abolished.** But a **widespread custom in Shin'ar and the West** is that a *ba'al keri* does not pray until he **washes his whole body**… and for a **sick** person it doesn't apply.

So by strict law (*me'ikar hadin*): a *ba'al keri* may come to shul **without a mikveh and without even showering**, read from the Torah and pray. Washing before prayer is **only a custom** of certain places.

Part 4: "Even Hillel Would Have Been Angry"

I think even Hillel would have got angry at your letter.

The story (Shabbat 31a)

Two men bet **400 zuz** on whether **Hillel** could be made angry. One went to him on **Erev Shabbat** while Hillel was **bathing for Shabbat**, with absurd questions: *why do the Babylonians have round heads? Why do Africans have wide feet?* Each time Hillel came out, answered patiently, and went back. Finally the man said: *are you Hillel, the great Nasi? May there not be many like you in Israel!* **Why? *Because of you I've lost 400 zuz.* Hillel:** "Better you lose 400 zuz, and another 400, than Hillel lose his temper."**

Hillel is the exemplar of patience, and the Rambam says even he would have been provoked.

Three things that angered the Rambam

1. You inflated a handful of ignorant people into "the whole community."

You wrote that **everyone rose against you, old and young**. I was told it was **a few ignorant people** who said this to you in shul. **You made it a big thing.** You gave them importance, made it sound as if great rabbis were challenging you, and then you asked **me** about it.

2. You gave in to them. The rest of the letter implied Pinchas **followed** them: *from now on, no Torah study or prayer in shul without washing after an emission.*

3. You preached about its "severity."

They asked you to explain how serious this is, and **you gave a sermon on its severity. What severity? We're talking about a custom!**

"I love these words of the Rambam. I identify with them so many times, when you hear people giving **sermons, *pilpulim and derashot*** about how important something is, **and it's a *minhag***. People are going crazy about it."

"They laugh at us"

It's a custom in **certain Arab places**. In **Italy, France and Provence**, where **you** come from, as you know, **they never washed**. When people from the West come East and see we pray only after bathing, **they laugh at us** and say *you're copying the Arabs*, since the Arabs are particular about washing.

What you should have said

When **intellectually deficient people** come and challenge you, **scold them**. Say the truth, and **don't hide from it because there's a crowd.**

The answer:

> **words of Torah do not contract impurity.** A *ba'al keri* may pray and :**אין דברי תורה מקבלין טומאה** study. Washing before prayer is a custom that took hold in the Arab countries. **Where they wash, keep .your custom; where they don't, don't change**

Rabbi Daniel

It appears a **Rabbi Daniel** (unidentified) had been telling everyone it was **permitted**, and Pinchas, "for some reason, **didn't get on with Rabbi Daniel**." So when people complained about Rabbi Daniel, Pinchas sided with them: *he's wrong; everyone must wash first.*

Part 5: "How Does He Know Whether I Wash?"

"This is unbelievable." Pinchas reported that someone claimed **the Rambam himself doesn't wash** after an emission.

The Rambam: **this intellectually impoverished person is lying.** I have **never** failed to wash, **except when I was ill**. Why would I change my custom?

"He's almost making fun of Pinchas: **how does this man know** whether I go and wash? Why are you telling me what he said?" And: **I don't want to talk about this any more.**

The bottom line of the section

I didn't stop answering because I was angry, **because I forgive**. But I **was** angry, and you need to know why: **you wrote something that would have angered even Hillel. You gave in to the crowd, to ignorance and to the mob.**

Summary

1. **Rav Pinchas ben Meshullam**, from Provence, became **dayan of Alexandria**, apparently through the Rambam; he was the **go-between** who got the Rambam to answer the rabbis of Montpellier. The letter dates from **1185–1194**.
2. The relationship was **strained**. This Hebrew letter shows the Rambam's warmth, his **harshness**, and above all **why he wrote the Mishneh Torah**.
3. **"I was ill, not ignoring you."** Stories grow as they're passed on; **don't believe them**. Even if true: **I forgive. I won't uproot what I planted.**
4. **But forgiving isn't the same as not minding**: the Rambam tells Pinchas plainly he **was angry**. (Why the other dayan passed that on is left unexplained, "troubling.")
5. **The halachah:** Ezra's decree requiring a *ba'al keri* to immerse before Torah and prayer **was abolished**. **Torah does not contract impurity.** Washing before prayer is **only a custom** of Arab lands, unknown in Europe.
6. **Pinchas's failures:** he turned **a few ignorant people into "the whole community"**, **gave in to them**, and **preached the "severity" of a custom**. "Even **Hillel** would have been angry."

Coming Up

Next week, same time (8–9): the main point of the letter. **Pinchas criticises the Mishneh Torah**, published only a few years earlier, and **the Rambam lashes out**. "It's going to get personal." Along the way, the clearest window into **why the Rambam wrote the Mishneh Torah**.

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